

Security.

XXXIX.

Decree entered
as other
decrees.

XL.

If decree not
absolute under
37th Order.

Notice of de-
cree may be
served, to give
plaintiff oppor-
tunity to
answer, or that
he be excluded.

XLI.

Defendant sub-
mitting to costs
may have
rehearing.

Times within
which defend-
ant may pre-
vent decree
being absolute.

Two years.
In English
Order, three
years.

XLIII.

of any subsequent stage of the cause, the plaintiff seems to be entitled to; provided that, unless the decree be absolute, such payment is not to be directed without security being given by the plaintiff for restitution, if the Court afterward think fit to order restitution to be made. A decree, founded on a bill taken *pro confesso*, is to be passed and entered as other decrees.

After a decree, founded on a bill taken *pro confesso*, has been passed and entered, if the decree be not absolute, under Order XXXVII., an office copy thereof may be served on the defendant, against whom the order to take the bill *pro confesso* was made, or his solicitor, together with a notice to the effect that, if such defendant desires permission to answer the plaintiff's bill and set aside the decree, application for that purpose must be made to the Court within the time specified in such notice, or that such defendant will be absolutely excluded from making any such application. If such notice as aforesaid is to be served within the jurisdiction of the Court, the time therein specified for such application to be made by the defendant is to be three weeks after service of such notice; but, if such notice is to be served out of the jurisdiction of the Court, such time is to be specially appointed by the Court on the *ex parte* application of the plaintiff.

Any defendant, waiving all objection to the order to take the bill *pro confesso*, and submitting to pay such costs as the Court may direct, may have the cause reheard upon the merits stated in the bill, the petition for rehearing being signed by counsel as other petitions for rehearing.

In cases where a decree is not absolute under order XXXVII., the Court may order the same to be made absolute on the motion of the plaintiff:

1. After the expiration of three weeks from the service of a copy of the decree on a defendant, where the decree has been served within the jurisdiction.
2. After the expiration of the time limited by the notice provided for by order XL., where decree has been served without the jurisdiction.
3. After the expiration of *two* years from the date of the decree, where a defendant has not been served with a copy thereof.

And such order may be made either on the first hearing of such motion, or on the expiration of any further time which the Court may on the hearing of such motion allow to the defendant for presenting a petition for leave to answer the bill.

Where a decree is pronounced upon an order to take the bill *pro confesso*, and the party, in respect to whom

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